EDSON DZIPE

Versus

THE STATE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 20 MARCH 2026

Assessors:

Application for discharge in terms of Section 198(3) of the Code

Ms T Mtukwa, for the state
S. Mawere with Mr Chapisa, for the accused

NDUNA J: Death may occur suddenly, and one has to be very careful. On the day in question, the accused was going about his business, as he sells shoes in town. He had received some assistance at the police station, where a person to whom he had entrusted his goods caused them to be lost, and the police ordered that the said person compensate the accused. That transaction is not part of this trial. It is mentioned only to explain how the events leading to this trial arose. As the accused was walking about the marketplace, he was confronted by the deceased, who was not satisfied with what had transpired at the police station. The deceased appears to have intended to mete out some violence upon the accused. The accused is said, in his defence, to have pushed the deceased in self-defence. The push resulted in the deceased falling down and eventually passing away.

The accused was arrested and subsequently brought to trial for causing the death of the deceased. He pleaded not guilty and raised the defence of self-defence to the charge. At the close of the State case, the accused persisted with his defence and, through his counsel, applied for his discharge at the close of the State case. He alleges that there is no evidence upon which a court, acting carefully, may convict him.

On the other hand, the State maintains that it has established a case which calls for an answer from the accused. It is submitted on behalf of the State that, for the defence relied upon by the accused to be established, the accused must give evidence,

and the court will then evaluate that evidence in light of the defence advanced by the accused. On this aspect, the court has previously held the following in *Rolston Pillay v S 2010 (1) SACR 411 (SCA)* in respect of the appellant's plea of self-defence:

> "In matters of this nature, this Court is not at liberty to interfere with the findings of fact made by the trial court unless the manner in which the evidence was evaluated is proved to be wrong. In determining the question of whether the full bench committed an error, of fact or law, the findings of fact made by the trial court must be evaluated against the entire evidence that was led at the trial. That much was stated by this Court in S v Trainor. **That exercise has to be undertaken against the legal principle that the duty to prove that the accused is guilty lies squarely within the domain of the prosecution, and that duty does not shift to the accused even if they have raised a private-defence**. Where, in the performance of that exercise, it is found that it is reasonably possible that the accused might be innocent, the accused must be acquitted.'(emphasis added)

It is therefore clear that the court does not require evidence from the accused where he has raised the defence of self-defence at this stage. The court must evaluate the evidence led by the State and determine whether it has managed to disprove the application of that defence. After the State has led its evidence and closed its case, the accused is entitled to make an application for his discharge if he considers that a case requiring him to answer has not been established. That is enabled by *section 198(3) of the code* which states that:

> 198 Conduct of trial
> (1) ……
> (2) The prosecutor—
> (a) …..
> (3) If at the close of the case for the prosecution the court considers that there is no evidence that the accused committed the offence charged in the indictment, summons or charge, or any other offence of which he might be convicted thereon, it shall return a verdict of not guilty.
> (4) …..

What may be noted from the above provision is its use of the word "shall" in denoting what the court is required to do when the terms set out in the provision have been met. In *Pio v Franklin NO and Another 1949 (3) SA 442 (C) at 451*, the court explained what is implied by the use of the word "shall" in a statutory provision. It was stated that:

> The word "shall" when used in a statute is rather to be considered as peremptory, unless there are other circumstances which negative this construction.

The term "shall" in legal contexts carries significant weight, often denoting a mandatory obligation or requirement rather than a mere suggestion. Its precise interpretation may vary depending on the jurisdiction and the specific language of a statute or contract, but it generally imposes a duty on the party to whom it is directed. By virtue of the use of the word "shall," the provision must be taken to mean that, where the State has not led such evidence as would enable the court to convict the accused if he were to remain silent, the court is obliged to acquit the accused.

This section has come before our court on various occasions. It was noted by the Supreme Court in *State v Kachipare 1998 (2) ZLR 271 (S)*, that, unlike its precursor, namely, section 188(3) of [Cap 59] which used 'may' as opposed to 'shall', in the current section 198(3) a court must acquit at the close of the State case where:

> (i) There is no evidence to prove an essential element of the offence;
>
> (ii) The court must acquit where there is no evidence on which a reasonable court, acting carefully, might properly convict;
>
> (iii) The court must acquit where the evidence on behalf of the State is so manifestly unreliable that no reasonable court could safely act on it.

There is no longer any controversy as to whether a court may properly refrain from exercising its discretion in favour of the accused, if, at the close of the case for the prosecution it has reason to suppose that the inadequate evidence adduced by the State might be supplemented by defence evidence. See also *State v Kuruneri HH59-07* and *State v Morgan Tsvangirai & Ors HH119-03*.Therefore it is settled law that the court must and shall enter judgment for the accused if by the closure of state case, it would not convict the accused on the charge preferred or any other charge it would be competent to convict the accused.

In arriving at its decision, the court has to consider only evidence led by the state. Of course it must take into account the issues presented by the accused in his defence outline as well as that presented by the state. On the law and its application the defence and the state have addressed the court. We do accept whatever they said in this respect. They differ on how the court has to apply it to the facts of the matter.

The evidence led is comprised of the following;

The state led evidence form a fellow vendor at the scene of the crime. He stated that he observed the accused and the deceased in argument and the deceased wanted to beat up the accused over some issue. He did not see then what happened on the matter before the court. The second state witness was the doctor who was called to explain his post mortem examination on the deceased. Thereafter the state sought the admission of certain witnesses' evidence in terms in terms of section 314 of Criminal Procedure & Evidence Act (supra). That evidence does not assist the court in its determination of what happened here.

The state also led into evidence the warned and cautioned statement. It is proper to reproduce verbatim what the accused stated in his caution:

> *On the 26th of May 2025 around six in the evening I passed by the corner of Fife Street and 5th Avenue collecting my money from a certain young man. That is where I met Somabala Khumalo who started insulting me for causing the arrest of his friend Simbarashe who had been told by the police to pay for my belongings which he had lost which become a vendetta including this Somabala. So he then said he wanted to teach me a lesson, he started booting me and falling me down. When I got up I said, "leave me alone my friend", when he kicked me for the second time I held his leg and he fell down. When I wanted to leave he followed me and said, "I am assaulting you today" and that is when he struck me in the face with a clenched fist which gave me the seal to defend to defend myself and I hit him back with a fist on the mouth and that is when he fell and I surrounded by a crowd of people, other assaulted me and the person that rescued me is Sydney who said "the people had been fighting and this one assaulted the other first and he was hit back so wait for the police and an ambulance. That is what happened. 26 May 2025*

It is clear that the statement made by the accused, which was tendered by the State as part of its evidence, indicates that he was assaulted first and had to stand his ground in order to defend himself. That is the only evidence led by the State regarding the events that transpired on the day in question. It is apparent that the accused struck back, claiming that he was defending himself from the deceased, who was attacking him. The deceased fell down and sustained the injuries from which he later died.

The State's position is that the accused must take the witness stand and give evidence in order for the court to take into account the defence being advanced. No authority has been cited in support of that proposition. What the court is required to do is to evaluate the evidence led by the State and determine whether it establishes a prima

facie case. The position is that the accused has raised the defence of self-defence. The question for determination is whether that defence is sustainable, and whether it has been negatived by the State.

The *Criminal Law (Codification & Reform) Act {Chapter 9:23*] provides for the defence of self-defence. It provides that: -

> 253 Requirements for defence of person to be complete defence
> (1) Subject to this Part, the fact that a person accused of a crime was defending himself or herself or another person against an unlawful attack when he or she did or omitted to do anything which is an essential element of the crime shall be a complete defence to the charge if–
> (a) when he or she did or omitted to do the thing, the unlawful attack had commenced or was imminent or he or she believed on reasonable grounds that the unlawful attack had commenced or was imminent, and
> (b) his or her conduct was necessary to avert the unlawful attack and he or she could not otherwise escape from or avert the attack or he or she, believed on reasonable grounds that his or her conduct was necessary to avert the unlawful attack and that he or she could not otherwise escape from or avert the attack, and
> [Paragraphs (a) and (b) substituted by section 31 of Act 9 of 2006.]
> (c) the means he or she used to avert the unlawful attack were reasonable in all the circumstances; and
> (d) any harm or injury caused by his or her conduct–
> (i) was caused to the attacker and not to any innocent third party; and
> (ii) was not grossly disproportionate to that liable to be caused by the unlawful attack.
> (2) In determining whether or not the requirements specified in subsection (1) have been satisfied in any case, a court shall take due account of the circumstances in which the accused found himself or herself, including any knowledge or capability he or she may have had and any stress or fear that may have been operating on his or her mind.

And in *section 254* the following is provided: -

> *254 When defence of person partial defence to murder*
> *If a person accused of murder was defending himself or herself or another person against an unlawful attack when he or she did or omitted to do anything that is an essential element of the crime, he or she shall be guilty of culpable homicide if all the requirements for defence of person specified in section two hundred and fifty-three are satisfied in the case* ***except that the means he or she used to avert the unlawful attack were not reasonable in all the circumstances***.

It is apparent that the application of the defence in murder cases is subject to the provisions of section 254 supra. The court is enjoined to determine whether the accused

can be said to have used means that were not reasonable in the circumstances. From the evidence led by the State, it is clear that the warned and cautioned statement indicates that the accused used his hands to defend himself. There is nothing to suggest that the accused could have employed any other means. The court therefore makes a positive finding that the accused does not fall to be judged adversely in terms of section 254 of the Criminal Code. It follows that his plea prevails in this matter, and the accused is found not guilty and is accordingly acquitted of the charge of murder, having acted in lawful self-defence.

He is accordingly found not guilty and is acquitted in terms of *Section 198(3) of the Code.*

Morris-Davies & Co, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners